

Tentative Rulings for July 6, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304541	WARTA VS LOZANO PLUMBING SERVICES INCORPORATED	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Confirm that FAC has been filed (it may be in the clerk's office for review);
2. Should the LWDA/Aggrieved Employee split be 65/35?
3. Confirm defense counsel is not aware of any other cases making similar class, collective or representative claims.
4. No declaration confirming class members' likely age, education, experience and fluency in English.
5. Revise order to require administrator to redact all or any portion of an SSN on opt out or objection forms filed with the motion for final approval.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305262	DELGADO VS L&P GROUP, INC.	MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Will the administrator calculate the range of class payments and the PAGA average before the notice is sent?
2. Confirm defense counsel is not aware of any other cases making similar class, collective or representative claims.
3. Release language is broader than the CMO—are there any claims that are intended to be released that aren't alleged? Should any parties be specifically stated as being released?
4. Confirm submission to the LWDA (exhibit 5 to Benowitz declaration appears to be missing).
5. Attach notice, opt out and objection forms to the proposed order.
6. Revise proposed order to include administrator's duties, including filing a declaration in support of motion for final approval authenticating any opt out or objection forms received.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2403565	CESENA VS TAYLOR METAL INC.	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

Tentative Ruling: Grant; appearances requested to discuss date for review of administrator's report concerning distribution of funds; November 26, 2027, appears to be part of the Thanksgiving Day holiday and the Court will not be in session.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507379	OVERMAN VS MUIR WOOD, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss formation of agreement and the delegation clause issues.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2402849	BELTRAN VS FONDOMONTE CALIFORNIA, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

Tentative Ruling: Grant; but need proposed judgment.